

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 6**

**Honorable Rafael Sivilla-Jones, Presiding**

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

**May 21, 2026**

**9:00 and 9:01 A.M.**

**RECORDING COURT PROCEEDINGS IS PROHIBITED**

**ORAL ARGUMENT**

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

***If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted.*** (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

**REMOTE APPEARANCES**

**Phone only appearances are PROHIBITED.** In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5.**

To access the courtroom, click or copy and paste this link into your internet browser and scroll to

Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

| LINE                        | CASE NO.   | CASE TITLE                                        | TENTATIVE RULING                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|-----------------------------|------------|---------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 9:00<br><a href="#">1</a>   | 24CV434569 | Sierra, et.al. v. FCA US, LLC, et. al.            | See Line Item 1 below.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 9:00<br><a href="#">2</a>   | 25CV461522 | Yee, et.al, vs FCA US, LLC, et.al.                | See Line Item 2 below                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 9:00<br><a href="#">3</a>   | 25CV461594 | Alcantar v. General Motors, LLC                   | See Line Item 3 below.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 9:00<br>4                   | 25CV463716 | JP Morgan Chase v. Nina Vo.                       | Defendant filed a motion to set aside default judgment. Plaintiff alleges that she was not properly served. Plaintiff filed no opposition to set aside motion. The motion to set aside judgment is GRANTED.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 9:00<br><a href="#">5-6</a> | 25CV466493 | Steven Noriega vs. Albertson's Company            | Plaintiff's file a petition to compel responses to interrogatories. Court finds that responses to interrogatory 1 is complete. Court finds that interrogatories 16, 18, and 24 are not overbroad and are relevant. Court finds that interrogatories 41 and 42 are duplicative and have been satisfied. Court finds that interrogatories 17, 18, 22, 23, 25-27, and 31-35 are vague and ambiguous. Court GRANTS petition to compel interrogatories as to 16, 17, 18, 22,23, 24-27, and 31-35 are DENIED. Plaintiff files a petition to compel further production of documents. Court finds that Request for Productions 2, 3, and 4 have been responded to by Defendant. Court finds that Request for Productions 9,10, and 11 are overbroad. Court finds that Request for Productions 19, 20, and 21 are relevant. Court finds that requests for production of 30, 31, and 37 are overbroad and vague. Court GRANTS petition to produce documents from Requests 19, 20, and 21. Court DENIES petition to produce documents from Requests 2-4, 9-1, 19-21, and 30, 31, and 37. |
| 9:00<br><a href="#">7</a>   | 25CV461594 | Saigon Central Post, Inc. v. Birk's Incorporated. | See Line Item 7 below                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
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Calendar Line 1

**Case Name:** *Sierra, et al. v. FCA US, LLC*

**Case No.:** 24CV434569

This is a lemon law action regarding the purchase of a used 2021 Jeep Cherokee. Defendant FCA US, LLC's ("FCA") motion for judgment on the pleadings as to the first cause of action for violation of Civil Code section 1793.1, subdivision (a)(2), the second cause of action for violation of Civil Code section 1793.1, subdivision (a)(3), the third cause of action for violation of Civil Code section 1793.2 and the fourth cause of action for violation of Civil Code sections 1791.1, 1794 and 1795.5 is GRANTED without leave to amend. (See *Rodriguez v. FCA US LLC* (2024) 17 Cal.5<sup>th</sup> 189, 200-202 (stating that FCA is a vehicle manufacturer and that "the basic framework of the Song-Beverly Act distinguishes between new and used products and 'provides similar remedies in the context of the sale of used goods, except that the manufacturer is generally off the hook'... '[s]ection 1795.5 provides express warranty protections for used goods only where the entity selling the used product *issues an express warranty at the time of sale*'... the obligation to maintain adequate repair facilities lies with 'the distributor or retail seller making express warranties with respect to used consumer goods (and not the original manufacturer, distributor, or retail seller making express warranties with respect to such goods when new)... under § 1795.5, 'only distributors or sellers of used goods—not manufacturers of new goods—have implied warranty obligations in the sale of used goods'").)

As to the fifth cause of action, FCA fails to make any argument. (See *Badie v. Bank of America* (1998) 67 Cal.App.4<sup>th</sup> 779, 784-785 (stating that when a party "fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived"); see also *Arega v. Bay Area Rapid Transit Dist.* (2022) 83 Cal. App. 5<sup>th</sup> 308, 318 (stating same); see also *City of Monterey v. Carrnshimba* (2013) 215 Cal.App.4<sup>th</sup> 1068, 1099 (stating that courts "are not bound to develop [the parties'] arguments for them").) Accordingly, FCA's motion for judgment on the pleadings as to the fifth cause of action for fraudulent inducement—concealment is DENIED.

Calendar Line 3

**Case Name:** *Monica Alcantar v. General Motors LLC*

**Case No.:** 25CV461594

This is a lemon law action. Defendant General Motors LLC (“GM”) demurs to the first through fifth causes of action alleged in the first amended complaint (“FAC”) filed by plaintiff Monica Alcantar (“Alcantar”).

On April 23, 2026, the court heard argument regarding GM’s demurrer to the FAC. The court requested supplemental briefing on the issue of whether the statute of limitations period outlined in Code of Civil Procedure section 871.21 bars Alcantar’s first and second causes of action. The court set out the following briefing schedule: GM was to submit its brief by April 30, 2026, Alcantar was to file a response by May 7, 2026, and GM was to file a reply by May 14, 2026. GM filed its brief on April 29, 2026. Alcantar filed a response on May 8, 2026—the court exercises its discretion to consider Alcantar’s untimely response.

The court addresses below the arguments raised by the parties in their supplemental briefing as to the FAC’s first and second causes of action. The court GRANTS GM’s request for judicial notice of Exhibit A pursuant to Evidence Code section 452, subdivisions (c) and (h). (See GM’s Request for Judicial Notice in Support of Supplemental Briefing (“RJN”), pp. 1:1-2:11; Evid. Code, § 452, subds. (c), (h).)

The court SUSTAINS GM’s demurrer to the FAC’s first and second causes of action with 20 days’ leave to amend. Alcantar appears to contend that Code of Civil Procedure section 871.21 did not become operative until July 1, 2025. (Alcantar’s Opposition to Defendants’ Demurrer, pp. 5:23-7:9.) However, Code of Civil Procedure sections 871.20 and 871.21 went into effect on January 1, 2025. (See Code Civ. Proc., §§ 871.20, 871.21.) It was therefore operative when Alcantar filed this action on March 18, 2025. Furthermore, the opt-in requirement for

manufacturers became effective on April 2, 2025 (i.e., *after* Alcantar filed this action in March 2025). (See Code Civ. Proc., §§ 871.20, 871.29, 871.30.) Thus, GM did not need to opt-in for Code of Civil Procedure sections 871.20 and 871.21 to be operative when Alcantar filed this action. Moreover, even if GM was required to opt-in to Code of Civil Procedure sections 871.20 and 871.21, it appears that GM did timely opt-in. (See RJN, Ex. A; Code Civ. Proc., § 871.30.) Ultimately, then, the court agrees with GM that the statute of limitations period outlined in Code of Civil Procedure section 871.21 applies to the facts at hand. (See Supplemental Brief in Support of FAC, pp. 1:18-2:21.) Under Code of Civil Procedure section 871.21, the applicable statute of limitations was six years from the original delivery date. (Code Civ. Pro. § 871.21.) Here, Alcantar purchased a 2015 Chevrolet Cruze (the “Subject Vehicle”) in June 2015. (FAC, ¶ 6.) Alcantar needed to initiate the action by June 2021. Alcantar did not initiate this action until March 2025.

The court turns to the parties’ due process arguments. Where a “change in remedy, as, for example, the shortening of a time limit provision, is made retroactive, there must be a reasonable time permitted for the party affected to avail himself of his remedy before the statute takes effect. If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party.” (*Rosefield Packing Co. v. Superior Court in and for City and County of San Francisco* (1935) 4 Cal.2d 120, 122-123 (*Rosefield*), internal citation omitted.) “In California, statutes of limitations, being procedural, are normally retroactively applied to accrued causes of action; but the court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff’s right.” (*Aronson v. Superior Court* (1987) 191 Cal.App.3d 294, 297.) The Court of Appeal in *Rosefield* held that a year was “no doubt” a reasonable time and noted that “[m]uch shorter periods have been upheld. [Citations.]” (*Rosefield, supra*, 4 Cal.2d at p. 123.) Here, Alcantar was given such a reasonable time. AB 1755, enacting Code of Civil Procedure section 871.20 et seq., became law on September 29, 2024, but did not go into effect until January 1, 2025. Litigants were

given a window of more than three months to file claims that would otherwise expire, like Alcantar's. Alcantar was given a reasonable amount of time to bring the claims and did not do so. Alcantar's due process rights have not been violated.

Moreover, to violate due process, *Rosefield* requires that the "change in remedy" must cut off an existing remedy. Causes of action under the Song-Beverly Act have a four-year statute of limitations which accrues, at the earliest, upon tender of delivery. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1306 (*Mexia*).) Four years after June 6, 2015, was June 6, 2019. (FAC, ¶ 6.) Alcantar filed the complaint in March 2025. Thus, unless the statute of limitations was tolled, Code of Civil Procedure section 871.21 did not cut off Alcantar's existing remedy. The FAC does not allege facts sufficient to invoke any of the tolling doctrines that it references. (FAC, ¶ 32.) As to the discovery rule, the FAC does not explain when and how Alcantar discovered GM's allegedly wrongful conduct—the generic allegation that Alcantar did so "shortly before" filing the complaint is insufficient. (*Id.* at ¶¶ 36-41; see *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.) As to the "repair doctrine," the FAC is devoid of allegations that Alcantar notified the manufacturer or seller of their failure to fix any issues within 60 days of completion of repairs or services. (See Civ. Code, 1795.6, subd. (b).) As to the "class action tolling" doctrine, the FAC identifies no class action that could potentially toll any applicable statute of limitations here. (See *Am. Pipe & Const. Co. v. Utah* (1974) 414 U.S. 538, 554.) As to the doctrines of equitable tolling, fraudulent concealment, and equitable estoppel, when a plaintiff relies on any of these theories "to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory. [Citation.]" (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641, internal citations omitted.) For reasons the court has already discussed, the complaint does not allege facts sufficient to support application of these theories here. (See *Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 900; *Mitchell v. State Dept. of Public Health* (2016) 1 Cal.App.5th 1000, 1008.)

The court OVERRULES GM’s demurrer to the FAC’s third cause of action. Code of Civil Procedure section 871.20 plainly states that it applies to a violation of section 1793.2, subdivisions (b) or (d), not subdivision (a)(3)—the FAC’s third cause of action alleges liability under Code of Civil Procedure section 1793.2, subdivision (a)(3). (Code Civ. Proc. § 871.20, subd. (a).)

The court OVERRULES GM’s demurrer to the FAC’s fourth cause of action. GM argues that the “delayed discovery does not apply to implied warranty claims.” (MPA, p. 12:15-21, citing *Nguyen v. Nissan North America, Inc.* (N.D. Cal. 2020) 487 F.Supp.3d 845, 854, fn. 3.) GM is incorrect that the delayed discovery doctrine never applies to implied warranty claims. (See *Mexia, supra*, 174 Cal.App.4th at pp. 1309-1311 [stating that “by giving the implied warranty a limited prospective existence beyond the time of delivery, the Legislature created the possibility that the implied warranty could be breached after delivery . . . when a buyer has accepted a tender of goods, he or she must, within a reasonable time after he or she discovers or should have discovered any breach, notify the seller of breach or be barred from any remedy . . . [i]f the Legislature intended the duration provision to impose a deadline for consumers to give notice of defects under the Song-Beverly Act, it could have easily done so . . . [i]t did not . . . we interpret the duration provision as providing the implied warranties under the Song-Beverly Act with a limited prospective existence beyond the date of delivery.”]; see also *Yeager v. Ford Motor Co.* (N.D. Cal. Jan. 8, 2020) 2020 U.S. Dist. LEXIS 3805, at \*7 [stating that “[t]he issue is whether a purchaser can sue more than five years after the purchase on the theory that a latent defect lurked within the vehicle not reasonably discoverable by him until after the year ran such that the four-year limitations period began only upon discovery . . . [t]he answer is yes. The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale. [Citation.]”]; see also *Tanner v. Ford Motor Co.* (N.D. Cal. 2019) 424 F.Supp.3d 666, 671-672 [stating that “the statute of limitations for implied warranty claims does not run at tender . . . [i]t runs at discovery . . . the discovery rule applies to implied warranty claims. [Citation.]”].)

The court OVERRULES GM’s demurrer to the FAC’s fifth cause of action. GM argues that Alcantar “cannot invoke the delayed discovery rule because [Alcantar] affirmatively states that the alleged ‘[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period . . .’” (MPA, p. 13:6-8, citing FAC, ¶ 20.) According to GM, Alcantar fails to plead facts showing that she was not negligent in failing to make “the discovery sooner.” (*Id.* at p. 13:6-14, citing *Hobart v. Hobart Estate Co.* (1945) 26 Cal.2d 412, 437; *Johnson v. Ehrgott* (1934) 1 Cal.2d 136, 137.) The question of whether Alcantar was “not negligent” in her discovery is a factual issue that cannot be decided on a demurrer—it does not present a deficiency on the face of the pleading. Moreover, Alcantar has alleged a history of repair attempts in which she presented the Subject Vehicle to GM’s authorized repair facility, and these facilities represented that they had repaired the Subject Vehicle. (See FAC, ¶¶ 11-12.) As to GM’s argument regarding the sufficiency of the allegations supporting the FAC’s fifth cause of action, the FAC alleges that Alcantar entered into a warranty contract with GM, GM advertised to Alcantar regarding the Subject Vehicle, the Subject Vehicle exhibited defects, GM knew of these defects and failed to disclose them, GM intended to defraud Alcantar, and Alcantar would not have purchased the Subject Vehicle had she known of these defects. (FAC, ¶¶ 6-13, 71-100.) These allegations are sufficient. (See *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844 (*Dhital*).) Although the Supreme Court initially granted review in *Dhital*, it subsequently dismissed review, which means *Dhital* is precedential authority. (Cal Rules of Court, rule 8.1115(e)(2).) The court is also not convinced by GM’s economic loss rule argument. (See *Dhital, supra*, 84 Cal.App.5th at pp. 833, 837-841.)

Calendar Line 4

**Case Name:** *Monica Alcantar v. General Motors LLC*

**Case No.:** 25CV461594



This is a lemon law action. Defendant General Motors LLC (“GM”) demurs to the first through fifth causes of action alleged in the first amended complaint (“FAC”) filed by plaintiff Monica Alcantar (“Alcantar”).

The court OVERRULES GM’s demurrer to the FAC’s first through third causes of action. GM argues that these causes of action are barred by the statute of repose and statute of limitations outlined in Code of Civil Procedure sections 871.20 and 871.21. (Memorandum of Points and Authorities in Support of GM’s Demurrer (“MPA”), pp. 10:6-11:27.) First, Code of Civil Procedure section 871.20 plainly states that it applies to a violation of section 1793.2, subdivisions (b) or (d), not subdivision (a)(3)—the FAC’s third cause of action alleges liability under Code of Civil section 1793.2, subdivision (a)(3). (Code Civ. Proc. § 871.20, subd. (a).) Moreover, in order for GM to rely on sections 871.20 or 871.21, it needs to have “elect[ed] to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles . . .” (Code Civ. Proc. § 871.29, subds. (a), (b); see also Code Civ. Proc. § 871.30, subd. (c).) GM has not demonstrated that it has met this requirement—the FAC does not allege that GM made any such election, GM does not argue or demonstrate that it made such an election in its memorandum of points and authorities in support of demurrer, and GM does not request that the court judicially notice any election. (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315-1316 [“In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.”], internal citations and quotation marks omitted.) Instead, GM states in its reply, for the first time, that it complied with Code of Civil Procedure section 871.21’s opt-in provision and directs the court to a website link. (GM’s Reply in Support of Demurrer, p. 3:1-11.) A court cannot rely on this type of extrinsic evidence in ruling on a demurrer. (*Nealy v. County of Orange* (2020) 54 Cal.App.5th 594, 597, fn. 1.)

The court OVERRULES GM’s demurrer to the FAC’s fourth cause of action. GM argues that the “delayed discovery does not apply to implied warranty claims.” (MPA, p. 12:15-21, citing *Nguyen v. Nissan North America, Inc.* (N.D. Cal. 2020) 487 F.Supp.3d 845, 854, fn. 3.) GM is incorrect that the delayed discovery doctrine never applies to implied warranty claims. (See *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1309-1311 [stating that “by giving the implied warranty a limited prospective existence beyond the time of delivery, the Legislature created the possibility that the implied warranty could be breached after delivery . . . when a buyer has accepted a tender of goods, he or she must, within a reasonable time after he or she discovers or should have discovered any breach, notify the seller of breach or be barred from any remedy . . . [i]f the Legislature intended the duration provision to impose a deadline for consumers to give notice of defects under the Song-Beverly Act, it could have easily done so . . . [i]t did not . . . we interpret the duration provision as providing the implied warranties under the Song-Beverly Act with a limited prospective existence beyond the date of delivery.”]; see also *Yeager v. Ford Motor Co.* (N.D. Cal. Jan. 8, 2020) 2020 U.S. Dist. LEXIS 3805, at \*7 [stating that “[t]he issue is whether a purchaser can sue more than five years after the purchase on the theory that a latent defect lurked within the vehicle not reasonably discoverable by him until after the year ran such that the four-year limitations period began only upon discovery . . . [t]he answer is yes. The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale. [Citation]”]; see also *Tanner v. Ford Motor Co.* (N.D. Cal. 2019) 424 F.Supp.3d 666, 671-672 [stating that “the statute of limitations for implied warranty claims does not run at tender . . . [i]t runs at discovery . . . the discovery rule applies to implied warranty claims. [Citation.]”].)

The court OVERRULES GM’s demurrer to the FAC’s fifth cause of action. GM argues that Alcantar “cannot invoke the delayed discovery rule because [Alcantar] affirmatively states that the alleged ‘[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period . . .’” (MPA, p. 13:6-8, citing FAC, ¶ 20.) According to GM, Alcantar fails to plead facts showing that she was not negligent in failing to make “the

discovery sooner.” (*Id.* at p. 13:6-14, citing *Hobart v. Hobart Estate Co.* (1945) 26 Cal.2d 412, 437; *Johnson v. Ehrgott* (1934) 1 Cal.2d 136, 137.) The question of whether Alcantar was “not negligent” in her discovery is a factual issue that cannot be decided on a demurrer—it does not present a deficiency on the face of the pleading. Moreover, Alcantar has alleged a history of repair attempts in which she presented the 2015 Chevrolet Cruze she purchased (the “Subject Vehicle”) to GM’s authorized repair facility, and these facilities represented that they had repaired the Subject Vehicle. (See FAC, ¶¶ 11-12.) As to GM’s argument regarding the sufficiency of the allegations supporting the FAC’s fifth cause of action, the FAC alleges that Alcantar entered into a warranty contract with GM, GM advertised to Alcantar regarding the Subject Vehicle, the Subject Vehicle exhibit defects, GM knew of these defects and failed to disclose them, GM intended to defraud Alcantar, and Alcantar would not have purchased the Subject Vehicle had she known of these defects. (FAC, ¶¶ 6-13, 71-100.) These allegations are sufficient. (See *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844 (*Dhital*).) Although the Supreme Court initially granted review in *Dhital*, it subsequently dismissed review, which means *Dhital* is precedential authority. (Cal Rules of Court, rule 8.1115(e)(2).) The court is also not convinced by GM’s economic loss rule argument. (See *Dhital, supra*, 84 Cal.App.5th at pp. 833, 837-841.)

Calendar Line 7

**Case Name:** *Saigon Central Post, Inc. v. Brink’s, Inc.*

**Case No.:** 25CV471826

Defendant Brinks Incorporated’s (“Brinks” or “Defendant”) request for judicial notice of the November 30, 2016 service contract and the contract endorsements pursuant to Evidence Code section 452, subdivision (h) is DENIED. (See *Gould v. Maryland Sound Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1145 (stating that “the existence of a contract between private parties cannot be established by judicial notice under Evidence Code section 452, subdivision

(h)).) Moreover, Defendant is not a party to the contract attached to the Hedrick declaration and there is no request for judicial notice of any fact that would link Defendant to the attached contract.

Defendant's demurrer to the first cause of action is **OVERRULED**. Penal Code section 496 prohibits a person from either "buy[ing] or receiv[ing] any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or... conceal[ing], sell[ing], withhold[ing], or aid[ing] in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained...." (Pen. Code § 496.) Defendant's argument only concerns the receipt of property that has been stolen or that has been obtained in any manner constituting theft or extortion. (See Def.'s memorandum of points and authorities in support of demurrer ("Def.'s memo"), p.4:7-25, 5:1-6.) Defendant fails to address whether the first cause of action fails to allege whether it withheld or concealed property from the owner, and indeed, the first cause of action alleges that it continued to withhold Plaintiff's property and deprive it of its ownership, knowing that the property was stolen. (See FAC, ¶¶ 8-12; see also *Williams v. Super. Ct. (People)* (1978) 81 Cal.App.3d 330, 343-344 (stating that "[c]oncealing stolen property is a distinct and separate offense from receiving stolen property precisely because receiving congeals and is completed upon taking possession with guilty knowledge, whereas concealing, by definition, continues... [o]ne reason for including both receiving and concealing stolen property within the proscription of Penal Code section 496 is that it enables prosecution of one who innocently acquires property, but later learns that it was stolen and thereafter conceals it").)

Defendant's demurrer to the second cause of action on the ground that it is barred by the economic loss rule is **OVERRULED**. As a preliminary issue, the FAC does not allege the existence of any contract, much less terms of such an agreement, such that the Court could determine the application of the economic loss rule. (See *Lafferty v. Wells Fargo Bank* (2013) 213 Cal.App.4<sup>th</sup> 545, 566 (stating that a "demurrer tests the pleading alone and not the evidence

or other extrinsic matters which do not appear on the face of the pleading or cannot be properly inferred from the factual allegations of the complaint”).) Further, Defendant misunderstands the economic loss rule. The California Supreme Court has stated that “[i]n general, there is no recovery in tort for *negligently* inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5<sup>th</sup> 1, 20 (italics original), 44 (stating that “the economic loss doctrine applies when the parties have entered into a contract; the plaintiff sues for tort damages, alleging the defendant failed to perform as the contract requires; and negligently caused economic losses flowing from the breach”).) “[T]he economic loss rule does not act as an absolute bar to tort recovery in every case in which the parties have a contractual relationship.” (*Id.* at p.23.) “The doctrine does not apply if... the defendant violated a duty flowing, not from the contract, but from a separate, legally recognized tort obligation.” (*Id.* at p.44.) While Defendant characterizes the alleged injury as a “failure to credit a portion of the cash,” the second cause of action alleges that Defendant took Plaintiff’s cash for itself with the intention to deprive that money from Plaintiff. Defendant fails to explain how its intentional deprivation of Plaintiff’s property was reasonably contemplated by the parties at the time when the contract was formed. (*Id.* at p. 27 (stating that “if the contract reveals the consequences were not reasonably contemplated when the contract was entered and the duty to avoid causing such a harm has an independent statutory or public policy basis, exclusive of the contract, tort liability may lie”).)

Plaintiff shall submit a proposed order consistent with the tentative ruling within 10 days of the hearing.